

Amendment No. 1 to HB2389

Kumar
Signature of Sponsor

AMEND Senate Bill No. 2255*

House Bill No. 2389

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Bureau" means the bureau of TennCare; and

(2) "Psychotropic medication":

(A) Means a drug that exercises a direct effect upon the central nervous system and that is capable of influencing and modifying behaviors; and

(B) Includes:

(i) Antipsychotics;

(ii) Antidepressants;

(iii) Agents for control of mania and depression;

(iv) Antianxiety agents;

(v) Psychomotor stimulants; and

(vi) Hypnotics.

(b) The bureau, in consultation with the department of health and the department of children's services, shall publish no later than January 1, 2027, and biannually thereafter, two (2) comprehensive statewide data reports on the use of psychotropic medication and the psychotropic medication's associated costs. The data must be primarily derived from any medical and pharmacy claims from the TennCare program, as

described in this chapter, and, to the extent authorized by the federal centers for medicare and medicaid services, from federal data sources.

(c) The first report must contain the number of persons prescribed at least one

(1) psychotropic medication, categorized by the following:

(1) Age groups, as follows:

- (A) Birth to five (5) years of age;
- (B) Six (6) to twelve (12) years of age;
- (C) Thirteen (13) to seventeen (17) years of age;
- (D) Eighteen (18) to sixty-four (64) years of age; and
- (E) Sixty-five (65) years of age and older;

(2) The number of distinct covered outpatient psychotropic medications paid through the TennCare pharmacy benefit prescribed per person over the course of one (1) year:

- (A) One (1) to three (3);
- (B) Four (4) to six (6);
- (C) Seven (7) to ten (10);
- (D) Eleven (11) to fourteen (14); and
- (E) Fifteen (15) or more;

(3) The person's county of residence, unless de-identification measures are needed as outlined in subsection (g);

(4) The percentages of the total TennCare population in each category in subdivisions (c)(1), (2), and (3); and

(5) The total cost of psychotropic medications paid by the TennCare program, as described in title 71, chapter 5, with separate subtotals for state funds and federal funds, categorized by the same age, medication count, and county criteria as described in this subsection (c), unless de-identification measures are needed as outlined in subsection (g).

(d) The second report must contain the number of children in state custody who are receiving foster care services as described in § 37-2-604 and who are prescribed psychotropic medication when the covered outpatient medication is paid through the TennCare pharmacy benefit, categorized by the following:

(1) Age groups, as follows:

(A) Birth to five (5) years of age;

(B) Six (6) to twelve (12) years of age; and

(C) Thirteen (13) to seventeen (17) years of age;

(2) The number of distinct psychotropic medications prescribed per child as described in subdivision (d)(1) over the course of one (1) year when the child receives the psychotropic medication for a period of ninety (90) days or longer:

(A) One (1) to three (3);

(B) Four (4) to six (6);

(C) Seven (7) to ten (10);

(D) Eleven (11) to fourteen (14); and

(E) Fifteen (15) or more;

(3) The person's county of residence, unless de-identification measures are needed as outlined in subsection (g); and

(4) The total cost of psychotropic medications paid by the TennCare program, as described in this chapter, with separate subtotals for state funds and federal funds, categorized by the same age, medication count, and county criteria as described in this subsection (d), unless de-identification measures are needed as outlined in subsection (g).

(e) Each report shall include comparative data for the immediately preceding two (2) calendar years presented in tabular format.

(f) The initial report required by this section must be published as outlined in subsection (b). Beginning July 1, 2027, biannual reports are due within ninety (90) days

of the end of each calendar year and the beginning of each state fiscal year. Within such timelines, the bureau shall:

(1) Post both reports in a conspicuous, publicly accessible location on the TennCare website; and

(2) Transmit official copies of both reports, including any executive summary or recommendations, to the senate health and welfare committee and the committee in the house of representatives with subject matter jurisdiction over health-related matters.

(g) The reports must be prepared in aggregate and de-identified form to ensure compliance with all applicable state and federal privacy laws, including the Health Insurance Portability and Accountability Act (HIPAA) (42 U.S.C. § 1320d et seq.) and its implementing regulations. Data included in the reports must be de-identified in accordance with 45 CFR 164.514 and must not include protected health information (PHI), personally identifiable information, or any other confidential or federally protected data. The bureau shall ensure that any TennCare member data, and any data relating to children in state custody receiving foster care services described in § 37-2-604, is de-identified prior to publication and is presented using statistical disclosure limitation techniques, including suppression of small cell sizes, as necessary to prevent re-identification.

(h) The bureau, in consultation with the department of health and the department of children's services, is authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.